

Smt. Kamlesh Sharma v. Executive Engineer, Dakshinanchal Electricity Distribution Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 November 2013 · Writ - C No. 60929 of 2013 · **Writ disposed; petitioner relegated to clause 6.5 for bill correction.**

HEADNOTE

A writ seeking mandamus to correct an electricity bill was disposed of without examining the bill. The consumer's remedy is an appropriate application to the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Kamlesh Sharma petitioned the Allahabad High Court for a writ of mandamus directing the Executive Engineer, Dakshinanchal Electricity Distribution Corporation Limited, to correct an electricity bill dated 8 August 2013. Counsel for the petitioner and for the distribution company were heard. The petition raised only a billing-correction grievance; the order records no disconnection, assessment, or theft allegation, and the Court did not examine whether the bill was in fact wrong.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-application

HOLDING

A consumer who seeks correction of an electricity bill must file an appropriate application before the authority competent under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ of mandamus for that correction is not decided on merits and is disposed of with liberty to take that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking mandamus to correct an electricity bill was disposed of without examining the bill. The consumer's remedy is an appropriate application to the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 8.8.2013 REQUIRED CORRECTION ON THE MERITS

The Court did not examine the bill and relegated the petitioner to clause 6.5. ¶ 1